

9:00 AM

Line 5

25-CIV-04764 MARIA MANJARREZ, ET AL VS. JOSE CONSTANTINO PANAMENO, ET
AL

MARIA MANJARREZ
JOSE CONSTANTINO PANAMENO

REUBEN J. DONIG
MICHAEL E. ROGASKI

Plaintiffs' Motion to Compel Discovery Responses to Form Interrogatories and Request for Documents; to Deem as Admitted Unresponded-to Matters Covered Plaintiffs' Request for Admissions, and for Sanctions

TENTATIVE RULING:

For the reasons stated below, Plaintiffs Maria and Jesus Manjarrez' motion to compel Defendants Jose Constantino Panameo and Ana Panameno to serve responses to Plaintiffs' Form Interrogatories and Requests for Production of Documents ("RFPs"), and to deem the matters in Plaintiffs' Requests for Admission ("RFAs") admitted; and to compel Defendant Jose Constantino Panameo's deposition, which also seeks monetary sanctions, is GRANTED.

Background.

This case arises from an alleged July 2, 2023 automobile collision. On Oct. 16, 2025, Plaintiffs served, on each of the two defendants, Form Interrogatories, Requests for Production of Documents ("RFPs"), and Requests for Admission ("RFAs"). Initial responses were due in Nov. 2025. For several months after Nov. 2025, Defendants' counsel requested extensions of time to provide responses, which Plaintiffs' counsel repeatedly granted. (Donig Declaration.) Plaintiffs' counsel gave a final extension until June 8, 2026, and informed Defendants' counsel that if responses were not served by June 8, 2026, Plaintiff would file a motion to compel the discovery responses, and would seek sanctions. No responses were served by June 8, 2026.

Plaintiffs also served a Notice of Deposition for Defendant Jose Constantino Panameo's deposition, and scheduled it to take place on Dec. 15, 2025. (Donig Decl., Ex. 2.) Plaintiffs offer evidence that despite numerous attempts to have Defendant Jose Constantino Panameo appear for deposition, he still has not appeared.

On June 12, 2026, Plaintiffs filed this motion. It appears that as of early Sept. 2026, Defendants still have not served requested the discovery responses, and Defendant Jose Constantino Panameo still has not agreed to appear for a deposition.

Findings.

Plaintiffs' motion to compel Defendants to serve responses to Plaintiff's Form Interrogatories and RFPs is GRANTED. (Code Civ. Proc. §§ 2030.290; 2031.300.) All objections are waived. (Code Civ. Proc. §§ 2030.290(a); 2031.300(a).) Both Defendants shall serve responses within ten (10) days of being served with notice of entry of this Order.

Defendants' Opposition brief explains that defense counsel has been unable to contact Defendants for an extended period of time, which has prevented defense counsel from serving the discovery responses. However, this argument is not supported by any declaration or other evidence. Even if it were, the Opposition cites no authority suggesting that defense counsel's past inability to communicate with his clients constitutes a legitimate excuse, or any type of defense, for Defendants' failure to respond to Plaintiffs' discovery requests.

Plaintiffs' motion to deem the matters set forth in the RFAs admitted is GRANTED. (Code Civ. Proc. § 2033.280(c).) Those matters are deemed admitted.

Plaintiffs' motion to compel the deposition of Defendant Jose Constantino Panameo is GRANTED. Again, although Defendants' counsel inability to communicate with his clients may *explain why* Defendants have not responded to, or participated in, discovery, it does not *excuse* their failure to do so. Compliance is mandatory under the code. Defendant Jose Constantino Panameo shall appear for deposition within thirty (30) days of defense counsel being served with notice of entry of this Order or such other date as chosen by Plaintiff's counsel.

Plaintiffs' request for monetary sanctions is GRANTED. Defense counsel contends that sanctions should not be awarded on the grounds that the request was improperly noticed. Code Civ. Proc. § 2023.040 provides: "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought."

However, here the Notice of Motion provides in its title caption that it is seeking sanctions, and the motion seeks "sanctions in the amount of not less than \$2,000, or such greater amount as may be shown at the time of hearing." Notice of Motion, pg. 4, lines 23-24. Thus it is quite clear that monetary sanctions are sought. The motion is also directly addressed "To Defendants JOSE CONSTANTINO PANAMENO; ANA PANAMENO and their attorney of record, Jon Brick of the law firm of Shulz, Brick, and Rogaski." Notice of Motion, pg. 1, lines 17-18. Thus the defendant parties and attorney against whom sanctions are sought were clearly identified. A party can seek sanctions within the body of even an opposition to a discovery motion. Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:1991. Further, a separate motion for sanctions is also not required. *Dalessandro v. Mitchell* (2019) 43 Cal.App.5th 1088, 1092.

Plaintiff has thus requested monetary sanctions for having to bring this motion, and sanctions are allowed under the cited codes but are in the discretion of the Court. *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 791. "The principle

of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” *Id.* at 791(citations omitted). Nevertheless, the court is authorized to award as sanctions the moving party's “reasonable expenses,” including attorney fees for time spent in research and preparation of the motion and court time in connection with the motion. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.) The discovery motions were accompanied by a proper declaration of counsel establishing the claim for attorney’s fees, at a reasonable hourly rate, though the Court is using its discretion to reduce the total award of sanctions to a reasonable amount.

As attorney Brick may have lost contact with his clients, the Court finds that sanctioning him or his firm would be unjust at this time. However, Plaintiff is entitled to sanctions and the Court awards sanctions of \$1,500 against the individual Defendants, payable within 30 days of service of the Order after hearing.

Case Management

Plaintiff’s Reply brief indicated contemplation of a trial preference motion, which the Court advises is unnecessary as the Court can instead readily set a trial date. Accordingly, the Court hereby vacates the OSC re: ADR scheduled for January 28, 2027.

In lieu of that hearing, the Court hereby notices and sets a Case Management Conference / Trial Setting Conference (“CMC/TSC”), in Dept. 20 – Courtroom L Northern Branch, for January 4, 2027 at 9:00 a.m. If counsel have a conflict with that date, they may appear to discuss alternate dates for the CMC/TSC.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6

26-CIV-01579 AMPHLETT PROPERTY LLC VS. JIHANE HANNA BECHWATI, ET AL

AMPHLETT PROPERTY LLC
JIHANE HANNA BECHWATI

SCOTT TALKOV
PEIYU (PAULINA) LI

Defendants' Motion to Determine Value and Send Buyout Notice

TENTATIVE RULING:

The Motion to Determine Value and Send Buyout Notice by Defendants Nicolas Bechwati and Jihane Hanna Bechwati and Defendant/Cross-Complainant EPS, Inc. (collectively “Defendants”) is DENIED WITHOUT PREJUDICE in its entirety as premature.

Plaintiff Amphlett Property LLC (“Plaintiff”) brings this action seeking partition of commercial real property located at 301-307 N. Amphlett Blvd., San Mateo, CA, 94401 (“property”). The Complaint alleges that Plaintiff owns an undivided 40% interest as tenants in common with Defendant Nicolas Bechwati, who is alleged to own an undivided 35% interest in the property, and Defendant Jihane Hanna Bechwati, who is alleged to own an undivided 25% interest in the property. The Complaint seeks partition of the property as well as back rent and future rent from EPS, Inc., a tenant at the property.

Defendants bring this Motion asking the court to: (1) appoint either Gregory D. Hansen, MAI, or Clinton Freeman, MAI, as appraiser to determine the fair market value of the property, (2) order Plaintiff to pay 40% of the appraisal costs and set a deadline for their payment within 10 business days of the hearing on this Motion, (3) set a hearing to determine the property’s fair market value following completion of the appraisal, and (4) issue the statutory buyout notice after the valuation hearing. Defendants seek this relief based on the Partition of Real Property Act (“PRPA”). (Code Civ. Proc. §§ 874.311, et seq.) The PRPA applies to real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property. (Code Civ. Proc., § 874.311, subd. (b).)

However, the PRPA is found in Chapter 10 (Code Civ. Proc., §§ 874.311, et seq.) of Title 10.5, Partition of Real and Personal Property (Code Civ. Proc., §§ 872.010, et seq.). The PRPA supplements the other provisions of Title 10.5. (Code Civ. Proc., § 874.313, subd. (b) [“This chapter supplements the other provisions of this title and, if an action is governed by this chapter, this chapter shall control over any provisions of this title that are inconsistent with this chapter.”].)
